

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #07	CCRB Case #: 202105516	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 09/13/2021 5:54 PM	Location of Incident: 1000 5th Avenue - outside the Metropolitan Museum of Art	18 Mo. SOL 3/13/2023	Precinct: 19
Date/Time CV Reported Wed, 09/15/2021 12:40 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 09/15/2021 12:40 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephan Grant	21275	963058	023 PCT
2. POM Gabriel Leal	25034	969891	023 PCT
3. INS Melissa Eger	00000	924351	019 PCT
4. PO Nicholas Blake	23324	954553	CPK PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Papa	08680	966254	019 PCT
2. POM Benjamin Beiro	07399	953673	CPK PCT
3. POM Patrick Conley	00871	946628	019 PCT
4. LT Mylene Medrano	00000	936046	026 PCT
5. POM Johnny Solorzano	12152	953429	CPK PCT
6. SGT Steve Siciliano	03359	946249	019 PCT
7. POM Christophe Durney	11375	955895	019 PCT
8. POM Luis Moreira	08910	950916	CPK PCT
9. POF Angelica Beltran	09880	925004	CPK PCT
10. POM Jason Cataldi	23979	946844	PROPCLK
11. POM Elvir Lekperic	05826	960793	SRG 3
12. POM Robert Sagendorf	12058	963734	019 PCT
13. POM Nicholas Albergo	17802	954471	SRG 3
14. POM Robert Houston	22760	962483	SRG 3
15. PO Colin Kogan	21160	958769	SRG 3
16. PO Allyson Davila	03113	951703	SRG 2

Witness Officer(s)	Shield No	Tax No	Cmd Name
17. PO Dysmairy Dejesus	17479	958478	019 PCT
18. PO Brendan Lherisson	08888	960804	019 PCT
19. PO Brian Tarsnane	05534	970254	019 PCT
20. PO Bianca Gonzalez	26959	965144	019 PCT
21. SGT Scott Lemunyan	01506	938844	019 PCT
22. SGT Gianfranco Rubino	00541	933300	CPK PCT
23. PO Christopher Paulino	21409	959882	CPK PCT
24. PO Nicholas Noto	20757	959848	CPK PCT
25. PO Yamilet Perez-Bonilla	08802	966772	023 PCT
26. PO Nicholas Petratos	22622	970082	023 PCT
27. LT Jose Bonilla	00000	940973	023 PCT
28. PO Kevin Lui	06380	942087	023 PCT
29. PO Christopher Morales	05863	937137	CPK PCT
30. SGT James Arenella	00209	952419	019 PCT
31. CPT William Gallagher	00000	925327	CPK PCT
32. PO Jason Castillo	15434	948762	DIS CTL
33. LT Yeon Jung	00000	938741	SRG 4
34. LT Anthony Battaglia	00000	947983	019 PCT
35. PO Justino Brito	25120	948310	SRG 1
36. CPT Angelica Amaya	00000	937978	DIS CTL
37. SGT Mitchell Epstein	04662	954774	SRG 3
38. SGT Robert Livingston	01303	942067	SRG 1
39. PO Marco Dutan	21080	936535	SRG 3
40. PO Gabriel Paulino	21599	968702	026 PCT
41. SGT James Gebhard	01531	945752	TRN BUR
42. PO Maritza Acosta	24020	927886	SRG 2
43. DTS Michael Lombardi	05048	936970	019 PCT
44. PO Justin Hidalgo	24784	969791	023 PCT
45. PO Michael Maldonado	23573	930634	SRG 1
46. PO James Longobardi	13861	951932	SRG 1
47. PO Edward Waldron	14019	966392	019 PCT
48. PO Daniel Pardo	16981	957936	019 PCT
49. PO Francesca Mosomillo	20316	968023	019 PCT
50. PO Adam Zigrosser	24842	962889	019 PCT
51. PO Melvin Mammen	18577	953043	019 PCT
52. PO Conor Tuohey	19641	962848	019 PCT
53. SGT Alexandro Berrios	02936	929719	026 PCT
54. DT3 Daniel Loonie	02887	953006	TARU
55. DT3 Sean Huggins	04874	957689	TARU
56. LT SA Kevin Lee	00000	906625	PBMN
57. PO Brianna Mclymont	03537	964647	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . INS Melissa Eger	Force: Inspector Melissa Eger used physical force against § 87(2)(b)	A . Exonerated

Officer(s)	Allegation	Investigator Recommendation
B . POM Gabriel Leal	Force: Police Officer Gabriel Leal used physical force against § 87(2)(b)	B . Exonerated
C . POM Stephan Grant	Force: Police Officer Stephan Grant used physical force against § 87(2)(b)	C . Exonerated
D . PO Nicholas Blake	Force: Police Officer Nicholas Blake used physical force against § 87(2)(b)	D . Exonerated
E . POM Stephan Grant	Force: Police Officer Stephan Grant used physical force against § 87(2)(b)	E . Substantiated

Case Summary

On September 15, 2021, § 87(2)(b) filed this complaint as a witness through the CCRB website with links to Instagram photos and postings of a protest (BR1).

§ 87(2)(b) first included a link to an Instagram post by “§ 87(2)(b) (BR2; BR3; BR4) which included pictures of officers arresting and apprehending various protestors including § 87(2)(b) with a bloodied nose, and an individual who goes by § 87(2)(b) in a yellow shirt with the caption: “Activists were brutally & unlawfully arrested @metmuseum for non-violently practicing their first amendment right outside of the Met Gala.”

§ 87(2)(b) then also included a link to an Instagram post by “§ 87(2)(b) (BR2; BR3; BR4) which included pictures and a video of officers arresting and apprehending § 87(2)(b) with his face bloodied by his nose and § 87(2)(b) with no caption.

On September 13, 2021 at approximately 5:30pm, a group of protestors were blocking traffic along 5th Avenue and East 81st Street outside of the Metropolitan Museum of Art [the Met] during the Met Gala. Inspector Melissa Eger of the 19 Precinct determined that the protestors needed to be removed from 5th Avenue in order to allow traffic to pass. For eight minutes, a Long Range Acoustic Device (LRAD) announcement played letting the protestors know that they would be arrested if they did not clear the street. When protestors remained, Inspector Eger made the decision to arrest the protestors. Inspector Melissa Eger, Police Officer Gabriel Leal and Police Officer Stephan Grant of the 23 Precinct, and Police Officer Nicholas Blake of the Central Park Precinct used force when restraining and arresting § 87(2)(b) (**Allegations A-D: Force, exonerated**). After officers started making arrests, the remaining protestors moved on to the sidewalk on the west side of 5th Avenue. A protestor known only as § 87(2)(b) who was not arrested or issued a summons, moved to the sidewalk, but continued to yell at officers, including PO Grant, and hit a police car with their hand. PO Grant continued to tell the protestors, who were on the sidewalk, to move back, and pushed § 87(2)(b) in the chest so that they fell approximately 16 feet back onto the sidewalk (**Allegation E: Force, substantiated**).

The investigation received 51 body-worn camera (BWC) videos (BR5), TARU video (BR6; BR7; BR8; BR9; BR10; BR11), and a hard drive from the Met (BR12).

Findings and Recommendations

Allegation A- Force: Inspector Melissa Eger used physical force against § 87(2)(b)

Allegation B Force: Police Officer Gabriel Leal used physical force against § 87(2)(b)

Allegation C- Force: Police Officer Stephan Grant used physical force against § 87(2)(b)

Allegation D-Force: Police Officer Nicholas Blake used physical force against § 87(2)(b)

On September 13, 2021 at 5:30pm, there was a protest at 1000 5th Avenue in Manhattan in front of the Met. § 87(2)(b) and other protestors were protesting against actions of the NYPD, the war in Afghanistan, on behalf of people experiencing homelessness, and Black Lives Matter in which they took up the entire width of the avenue.

The CCRB did not obtain a statement from § 87(2)(b) as she did not respond to the CCRB’s contact attempts. An alleged victim, § 87(2)(b) knew the other alleged victims and requested that none of them be called unprompted and refused to give a statement. § 87(2)(b) another identified protestor, was uncooperative with the CCRB and did not provide a statement.

PO Leal arrested § 87(2)(b) under Arrest # § 87(2)(b) for Obstructing Governmental Administration, Escape, and Disorderly Conduct. The arrest narrative noted that § 87(2)(b) was with other protestors and blocking traffic and grabbed an NYPD barricade. The arrest narrative further states that PO Grant approached § 87(2)(b) to place him under arrest when § 87(2)(b) ran away. § 87(2)(b) refused to give his hands to be handcuffed and went limp while being taken to a police vehicle (BR13).

TARU (BR7) from 00:00-00:30 shows members of service (MOS) from different commands holding a line in front of protestors. § 87(2)(b) wears a yellow shirt, black bandana on their head, and glasses with clear frames. § 87(2)(b) is a Black male wearing all black and a black vest. Ins. Eger is a short, White female in a white shirt and black hat. PO Grant is holding the line and is a Black male with tattoos on his arm.

In Inspector Eger's BWC from 00:00-1:00 (BR14), Inspector Eger walks on 5th Avenue and East 81st Street where spectators are standing on the sidewalks behind barriers and protestors are behind barriers in the street on 5th Avenue. No traffic is coming through due to the barriers. Inspector Eger walks over to talk to other members of service and § 87(2)(b) leans on the barriers looking at Inspector Eger. Inspector Eger makes phone calls. From 1:00-2:32, the protestors are heard yelling for abolition. Inspector Eger walks over to Deputy Chief Russell Green of the Housing Bureau command and states, "Chief, I wanna open the barrier and let the traffic through and I wanted your okay." DC Green tells her yes and Inspector Eger states, "wanna do that? I'm not going to touch them, I'm going to open the barrier and let the traffic through then we will go from there?" DC Green states, "the only thing is, if we open the barrier..." and Inspector Eger states, "they'll jump over, they'd jump over at once. Unless we do the warnings." DC Green asks, "if we open the barrier and give them free range to walk up it, is there any other option?" Inspector Eger states, "I could do another barrier. If we open it, will they move, that's the thing." DC Green states they might come further up and asks how to get the traffic from Madison Avenue up through their intersection. Inspector Eger states she can back it up and work on getting that traffic through and walks away from DC Green. From 2:32-4:22, she directs officers to maintain a line and calls other officers to East 81st Street to direct traffic. Inspector Eger tells bystanders to back up to let traffic through and many bystanders walk onto the sidewalks. Inspector Eger tells officers to go to Madison Avenue to direct traffic through and tells officers to not let anyone onto certain streets while they let traffic through. The protestors are still in the middle of 5th Avenue yelling "all cops are bastards." Inspector Eger and DC Green talk about bringing SRG down and beginning the LRAD warnings. Inspector Eger states the protestors in the middle of the street are starting to inch up toward the officers and where they need to direct traffic. Inspector Eger states that she and the other officers know these protestors. Inspector Eger gives instructions to supervisors while officers stand in front of the protestors who continue to yell at officers. At 4:22, Inspector Eger states that the crowd is starting to inch up and they will have to put hands on them. Officers state they know this group.

In Inspector Eger's BWC (BR14) at 5:21, a car begins to turn onto 5th Avenue from East 81st Street and the protestors are still in the middle of the street. Inspector Eger asks for barriers. At 6:20, § 87(2)(b) begins to point at Inspector Eger from the middle of the street. At 7:10, Inspector Eger tells the other officers that she needs "metal." The protestors are beginning to link arms. § 87(2)(b) yells to the crowd to "stay tight" and a protestor in pink identified as § 87(2)(b) begins to yell at the officers through a microphone. At 8:28, Inspector Eger approves the LRAD announcements and then SRG will move in. Beginning at 9:20, LRAD announcements begin stating repeatedly for eight minutes: "This is the New York City Police Department. You are unlawfully in the roadway and obstructing vehicular traffic. You are ordered to leave the roadway and utilize the available sidewalk. If you do so voluntarily, no charges will be placed against you. If you remain in the

roadway and refuse to utilize the sidewalk, you will be placed under arrest and charged with disorderly conduct.” Around 14:00, the LRAD then transitions to saying, “since you have refused to leave the roadway, you will be placed under arrest on a charge of disorderly conduct; if you do not cooperate and accompany the arresting officer to the prisoner transport vehicle or if you resist arrest, you may be charged with additional crimes.” Inspector Eger and other MOS approach the protestors and at 11:31, § 87(2)(b) begins to pull barriers between the protestors and MOS. At 11:49, Inspector Eger tells officers to “take them” as officers from the SRG walk forward to the protestors. § 87(2)(b) is in front. Inspector Eger states, “SRG-they’re under” and refers to the group of protestors at large. At 12:52, protestors are yelling at officers, “why are you in riot gear?” At 12:58, Inspector Eger points at § 87(2)(b) and states, “this guy” and § 87(2)(b) yells at her to not touch him. Inspector Eger states, “I need somebody...the guy in dreds. The dreds guy has to go.” Inspector Eger runs toward § 87(2)(b) and yells that he is “running away now.” PO Grant falls on top of him and Inspector Eger then directs other officers with PO Grant and PO Leal on how to handcuff § 87(2)(b). Officers then roll him over and § 87(2)(b) yells at PO Grant. Officers remove § 87(2)(b) until 14:40.

TARU (BR7) from 00:00-2:54 shows a line of approximately 15-20 officers, including PO Grant, standing in the middle of 5th Avenue, in front of the Met facing south. Directly in front of the officers is a larger group of protestors, facing north, also standing in the middle of 5th Avenue. The TARU camera pans north on 5th Avenue to show that traffic on 5th Avenue cannot move through the group of officers and protestors and East 81st Street is blocked off with barricades. § 87(2)(b) wears a yellow shirt, black bandana on their head, and glasses with clear frames. § 87(2)(b) is a Black male wearing all black and a black vest. The protestors link arms. § 87(2)(b) using a microphone, walks between the line of protestors and MOS and speaks about the Met Gala, NYPD oppressing marginalized people, freeing Palestine and Afghanistan, and “fuck the police” statements. At 2:40, § 87(2)(b) and PO Grant begin to argue about § 87(2)(b) statements about Palestine and Afghanistan. The long-range acoustic device (LRAD) announcements begin at 2:54 and continue for eight minutes. The protestors remain in the roadway as the LRAD plays several times. At 4:09, officers start moving down 5th Avenue approaching the protestors. The protestors move south down 5th Avenue but do they do not exit the roadway. § 87(2)(b) first moves a barricade between him and the officers at 4:40 and officers move the barricade back to the sidewalk. Other protestors also begin to move barricades between them and the officers. At 5:13, § 87(2)(b) jumps on top of a metal barricade. From 6:33-6:48, the protestors remain on 5th Avenue, and an officer in a white shirt at the back of the police line is raising his arms and saying “let’s go” while the LRAD continues to play. No protestors have left the middle of the street. At 6:58, § 87(2)(b) and other protestors with § 87(2)(b) are still in the middle of 5th Avenue, when the message on the LRAD changes and says, “since you have refused to leave the roadway, you will be placed under arrest on a charge of disorderly conduct; if you do not cooperate and accompany the arresting officer to the prisoner transport vehicle or if you resist arrest, you may be charged with additional crimes” and officers move in to make arrests of the protestors who remained on 5th Avenue. The protestors continue to back up and the officers approach.

A Twitter video (BR15) from 00:00-00:07 shows PO Grant, Inspector Eger, and PO Leal falling with § 87(2)(b) onto the ground.

In PO Grant’s BWC, from 10:35-12:08 (BR16), § 87(2)(b) backs up as PO Grant approaches him. PO Grant runs to him and both PO Grant and § 87(2)(b) fall to the ground. PO Grant tells him to turn around while Inspector Eger and PO Leal help to rear handcuff § 87(2)(b) while he is still on the ground. § 87(2)(b) has no visible injuries or blood on his face. Inspector Eger instructs officers how to handcuff and stand up § 87(2)(b). § 87(2)(b) repeatedly calls PO Grant slurs and yells directly to him so a lieutenant tells PO Grant to leave. PO Grant walks away

as other officers take § 87(2)(b) away. This is the last interaction that PO Grant has with § 87(2)(b).

In the TARU footage (BR7), at 7:58, PO Grant, PO Leal, and Inspector Eger stand § 87(2)(b) up from the ground. PO Grant leaves. PO Leal and another officer hold § 87(2)(b) arms behind his back as he is already handcuffed. § 87(2)(b) splays his legs and pulls away from officers holding his arms and asks repeatedly why he is being arrested. § 87(2)(b) has no injuries on his face. PO Leal, PO Blake, and additional officers push § 87(2)(b) down to the ground on his stomach for a second time after PO Grant did so. PO Blake restrains § 87(2)(b) by holding his shoulders by his head. PO Blake's knee is at first close to § 87(2)(b) face but does not make contact with his face. § 87(2)(b) head and face never make contact with any surface or officers as spots of blood appear on the ground from his nose at 8:13. Four MOS hold him down on the ground by his arms, torso, and legs. § 87(2)(b) looks up from his position on the ground and is bleeding from his nose. Officers apply flex cuffs to § 87(2)(b) in addition to handcuffs. At 9:19, officers stand § 87(2)(b) up and he yells that he is bleeding. MOS walk him backward and he resists by tensing his legs and pushing against them. § 87(2)(b) yells to the crowd that he is bleeding but okay.

PO Grant explained to the CCRB that officers were holding the line and the crowd of about 20-30 people was ignoring the LRAD announcement. § 87(2)(b) was throwing barricades. PO Grant told two people to step back and go behind the line. PO Grant heard supervisors telling SRG to start taking the protestors into custody for disobeying the announcement. This was then when PO Grant started to engage with the protestors. SRG was told to grab § 87(2)(b) and PO Grant assisted by grabbing § 87(2)(b) waist. § 87(2)(b) twisted backward and tried to turn around and so they both fell. PO Grant did not try to take him to the ground, but it was a consequence and PO Grant fell with him. PO Leal and Inspector Eger helped to restrain § 87(2)(b) with handcuffs and Inspector Eger told him to get up and they rolled him over. § 87(2)(b) was cursing and screaming. This was the last interaction PO Grant had with this male as a lieutenant told him to walk away. PO Grant then turned around later, and § 87(2)(b) was on the ground again. There were no injuries during their fall, and he did not know how § 87(2)(b) was injured (BR17).

The NYPD Patrol Guide section 221-01 entitled "Force Guidelines" explains that Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, an application of force must be reasonable under the circumstances (BR18).

As per BWC, § 87(2)(b) continually disobeyed lawful orders to disperse. He refused to leave multiple times and resisted both times officers restrained him. § 87(2)(g)

§ 87(2)(b) Even while in handcuffs, § 87(2)(b) resisted PO Blake, PO Leal, and other officers so they brought him to the ground to add additional flex cuffs. § 87(2)(g)

§ 87(2)(b) BWC shows no officers making contact with § 87(2)(b) face. Video shows the entirety of the force used against § 87(2)(b) before and after he bled from his nose and at no point do any officers make contact with his facial area. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations A-D be exonerated.

Allegation E-Force: Police Officer Stephan Grant used physical force against § 87(2)(b)

§ 87(2)(b) is another protestor seen in the Instagram links wearing a yellow shirt. After other searches on Instagram of the protest, an Instagram page called ‘§ 87(2)(b) names § 87(2)(b) with a picture of the protest stating that they are a non-binary individual (BR19).

In PO Grant’s BWC (BR16), from 6:25-6:48, § 87(2)(b) yells into a microphone about freeing Palestine and Afghanistan. § 87(2)(b) pulls their mask down and yells to PO Grant about why he made a face to them and to look up what’s going on. PO Grant’s face cannot be seen from his own BWC but PO Grant later told the CCRB as explained below, that he was confused which may have caused a facial expression. PO Grant tells § 87(2)(b) that he is a veteran and so he knows what’s going on.

In PO Grant’s BWC from 15:29-18:00 (BR16), § 87(2)(b) continually hits their hands and arms on a car hood while yelling with protestors and standing in the street. A lieutenant asks whose car that is, and PO Grant does not know. A Community Affairs officer goes over to § 87(2)(b) and § 87(2)(b) yells “fuck all yall...fuck this” at the officer. An officer in a white shirt tells § 87(2)(b) to stop hitting the car. § 87(2)(b) tells the officers that they, “don’t give a fuck. Don’t touch me because I will hit you” as PO Grant walks close to § 87(2)(b). Protestors try to pull § 87(2)(b) back, but § 87(2)(b) tells them not to touch them and puts their hands up. At 16:00, § 87(2)(b) tells PO Grant not to touch them or they will hit PO Grant. PO Grant repeatedly tells § 87(2)(b) to get on the sidewalk. At 16:06, § 87(2)(b) gets on the sidewalk. PO Grant thanks § 87(2)(b) for getting on the sidewalk. § 87(2)(b) from the sidewalk, leans over and hits the car again while asking PO Grant what he is going to do about it. PO Grant states that he just asked them to not touch the car. At 16:23, § 87(2)(b) leans over and holds their hand on the car asking what PO Grant is going to do stating, “what are you going to do? I’m on the sidewalk and I’m touching the car.” PO Grant tells § 87(2)(b) and other protestors to get on the sidewalk and § 87(2)(b) replies that they are on the sidewalk. BWC shows they are on the sidewalk. PO Grant puts his hand out and touches other protestors but does not push them. Other officers next to PO Grant do not make contact with other protestors or § 87(2)(b) at all. At 16:58, PO Grant was walking closer to other protestors also standing on the sidewalk. § 87(2)(b) reaches over to PO Grant and tells him to “back your ass up” and points at PO Grant before raising their arm up. PO Grant walks toward the crowd on the sidewalk and tells them all to back up. The protestors tell him to get back from them. At 17:00, PO Grant pushes § 87(2)(b) backward on their chest and is the only protestor that he pushes even though the rest of the crowd also yelled at PO Grant. § 87(2)(b) falls and walks backward into the crowd about 16 feet because of the push and other protestors have to catch them from falling on the ground. The crowd first steps back and then goes forward to yell at PO Grant. As PO Grant walks down the street, some of the crowd follows him. Officers tell PO Grant to walk away and walk with him to the other side of 5th Avenue.

PO Grant explained to the CCRB that § 87(2)(b) was chanting to “free Afghanistan and free Palestine” and PO Grant made “a face” because he was confused at this statement. § 87(2)(b) then asked him why he made that face. PO Grant told § 87(2)(b) he is a veteran. This interaction with § 87(2)(b) never affected his later actions toward them. PO Grant explained that later he saw § 87(2)(b) hitting another car while standing in the street. PO Grant approached and stood around the car while telling them to get back on the sidewalk. PO Grant described these interactions as overall chaotic. § 87(2)(b) hit the car’s hood twice and asked PO Grant what he would do if they did it again. Three or four male protestors to PO Grant’s right on the sidewalk were also aggressive with one holding onto a bicycle and threatening PO Grant with it and one in a green hoodie attempting to hit PO Grant. PO Grant could not show the CCRB these protestors’ actions as they occurred off camera. PO Grant then debriefed with Inspector Eger about the male punching him and Inspector Eger told him to leave the scene. PO Grant did not say why he pushed § 87(2)(b) (BR17).

The NYPD Patrol Guide section 221-01 entitled “Force Guidelines” explains that Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, an application of force must be reasonable under the circumstances. The Patrol Guide goes on to state that the reasonableness of the use of force is based upon the totality of the circumstances known by the members-of-service at the time of the use of force (BR18).

It is undisputed that PO Grant arrived at a chaotic protest in which a large group of protestors were continually disobeying lawful orders from PO Grant, the LRAD, and officers to get out of the street to let traffic through. BWC shows that before PO Grant pushed § 87(2)(b) and other protestors were indeed on the sidewalk § 87(2)(g)

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Allegation E should be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. § 87(2)(g)
§ 87(2)(g)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR21).
- § 87(2)(b)
§ 87(2)(b)
- Police Officer Gabriel Leal has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject (BR23).
- Police Officer Nicholas Blake has been a member of service for nine years and this is the first CCRB complaint to which he has been a party (BR24).
- Police Officer Stephan Grant has been a member of service for five years and this is the first CCRB Complaint to which he has been a party (BR25).
- Inspector Melissa Eger has been a member of service for 23 years and has been a subject in three CCRB complaints and 8 allegations, of which 1 was substantiated. § 87(2)(g)
§ 87(2)(g)
 - 200700622 involved substantiated allegations of a frisk. The Board recommended command discipline and the NYPD imposed no action.

Mediation, Civil, and Criminal Histories

- As of May 31, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR27)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

- _____

Investigator:	<u>Lianne May</u>	<u>Investigator Lianne May</u>	<u>November 14, 2022</u>
	Signature	Print Title & Name	Date
Squad Leader:	<u> </u>	<u>Manager Vanessa Rosen</u>	<u>August 9, 2022</u>
	Signature	Print Title & Name	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date